

Whistleblowing for employees

1. What is a whistleblower

You're a whistleblower if you're a worker and you report certain types of wrongdoing. This will usually be something you've seen at work - though not always.

Reporting a wrongdoing is also known as making a 'whistleblowing disclosure' or 'protected disclosure'.

The wrongdoing you disclose must be in the public interest. This means it must affect others, for example the general public.

As a whistleblower you're protected by law - you should not be [treated unfairly or lose your job \(/whistleblowing/treated-unfairly-after-whistleblowing\)](/whistleblowing/treated-unfairly-after-whistleblowing) because you 'blow the whistle'.

You can raise your concern at any time about an incident that happened in the past, is happening now, or you believe will happen in the near future.

Who is protected by law

You're protected if [you're a worker \(/employment-status/worker\)](/employment-status/worker), for example you're:

- an employee, such as a police officer, NHS employee, office worker, factory worker
- a trainee, such as a student nurse
- an agency worker
- a member of a [Limited Liability Partnership \(/business-legal-structures/limited-partnership-and-limited-liability-partnership\)](/business-legal-structures/limited-partnership-and-limited-liability-partnership) (LLP)

Get independent advice if you're not sure you're protected, for example from [Citizens' Advice \(http://www.adviceguide.org.uk/\)](http://www.adviceguide.org.uk/).

Confidentiality or gagging clauses

Confidentiality clauses or 'gagging clauses' (for example in an employment contract or settlement agreement) might try to prevent you from revealing

information about your workplace. These are sometimes called non-disclosure agreements.

These clauses are not valid if:

- you're a worker
- they try to prevent you from making a whistleblowing disclosure (sometimes known as a 'protected disclosure')

You might make this disclosure to a lawyer, your employer or a [prescribed person or body \(/whistleblowing/who-to-tell-what-to-expect\)](#).

A confidentiality clause within a settlement agreement could however still be valid if it's trying to prevent you from making another kind of disclosure.

Talk to your legal adviser before you enter into a settlement agreement, or any other agreement that has a confidentiality clause, if you want to tell someone about wrongdoing.

Complaints that count as whistleblowing

You're protected by law if you report any of the following:

- a criminal offence, for example fraud
- someone's health and safety is in danger
- risk or actual damage to the environment
- a miscarriage of justice
- the company is breaking the law, for example does not have the right insurance
- you believe someone is covering up wrongdoing

Complaints that do not count as whistleblowing

Personal grievances (for example bullying, harassment, discrimination) are not covered by whistleblowing law, unless your particular case is in the public interest.

Report these under your [employer's grievance policy \(/solve-workplace-dispute\)](#).

Contact the [Advisory, Conciliation and Arbitration Service \(Acas\) \(https://www.acas.org.uk/\)](#) for help and advice on resolving a workplace

dispute.

2. Who to tell and what to expect

You can tell your employer - they may have a whistleblowing policy that tells you what to expect if you report your concern to them. You can still report your concern to them if they do not have a policy.

There are other options if you do not want to report your concern to your employer, for example you can [get legal advice \(/find-a-legal-adviser\)](#) from a lawyer, or tell a [prescribed person or body \(/government/publications/blowing-the-whistle-list-of-prescribed-people-and-bodies--2\)](#).

If you tell a prescribed person or body, it must be one that deals with the issue you're raising, for example a disclosure about wrongdoing in a care home can be made to the Care Quality Commission.

There's a different [whistleblowing process in Northern Ireland \(http://www.nidirect.gov.uk/protection-of-whistleblowers\)](#).

Making your claim anonymously or confidentially

You can tell your employer or a prescribed person anonymously but they may not be able to take the claim further if you have not provided all the information they need.

You can give your name but request confidentiality - the person or body you tell should make every effort to protect your identity.

If you report your concern to the media, in most cases you'll lose your whistleblowing law rights.

What your employer or a prescribed person will do

Your employer or the prescribed person will listen to your concern and decide if any action is needed. You may be asked for further information.

You must say straight away if you do not want anyone else to know it was you who raised the concern.

You will not have a say in how your concern is dealt with.

Your employer or the prescribed person can keep you informed about the action they've taken, but they cannot give you much detail if they have to keep the confidence of other people.

A prescribed person cannot help you with your relationship with your employer.

If you're not satisfied with how your employer dealt with your concern

Tell someone else (for example a more senior member of staff) or a [prescribed person or body \(/government/publications/blowing-the-whistle-list-of-prescribed-people-and-bodies--2\)](/government/publications/blowing-the-whistle-list-of-prescribed-people-and-bodies--2) if you believe your concern was not taken seriously or the wrongdoing is still going on.

Contact the [Advisory, Conciliation and Arbitration Service \(Acas\)](https://www.acas.org.uk/) (<https://www.acas.org.uk/>), the whistleblowing charity [Protect](https://protect-advice.org.uk) (<https://protect-advice.org.uk>) or your trade union for more guidance.

3. If you're treated unfairly after whistleblowing

You can take a case to an [employment tribunal \(/employment-tribunals\)](/employment-tribunals) if you've been treated unfairly because you've blown the whistle.

You can get further information from the [Advisory, Conciliation and Arbitration Service \(Acas\)](https://www.acas.org.uk/) (<https://www.acas.org.uk/>), [Citizens' Advice](http://www.adviceguide.org.uk/) (<http://www.adviceguide.org.uk/>), the whistleblowing charity [Protect](https://protect-advice.org.uk) ([https://protect-advice.org.uk/](https://protect-advice.org.uk)) or your trade union.

If you reported your concern anonymously, you may find it harder to argue that your unfair treatment was as a result of your whistleblowing.

You must raise any claim of unfair dismissal within 3 months of your employment ending.

You must notify Acas if you want to take your case to an employment tribunal.





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